



Stephen Cooke <stephencooke.c@gmail.com>

Urgent: Application to Limit Costs – Addressing Concerns

3 messages

Stephen Cooke <stephencooke.c@gmail.com>

Tue, Sep 10, 2024 at 6:11 PM

To: Matthew Shepherd <mshpherd@ramsdenlaw.com.au>

Dear Matthew,

I am writing to express my deep concern about the significant legal costs that continue to accumulate unnecessarily due to actions taken by Delaney. Based on the pattern of their conduct, it seems there has been little genuine effort from their side to bring this matter to a close.

Here are specific examples of Delaney's actions that I believe should be included in an application to limit costs:

- Delaney attempted to introduce an additional letter to the registrar to strengthen her position concerning parenting matters, leading to avoidable costs. Rather than addressing this in a straightforward manner, this action resulted in additional, unnecessary correspondence—all after having accepted the final property settlement in principle.
- I also intend to highlight Delaney's repeated letters suggesting that my crying in front of the children caused them distress. These actions appear to be a deliberate attempt to manipulate or condition my children's perception of me in a negative way, which is deeply troubling. This is evidenced by my eldest son asking, "Why is there a picture of you crying on Mom's phone?" This reflects not only the baseless nature of these claims but also a concerning attempt to distort the children's reality.
- Delaney insisted on scheduling a mediation date despite inadequate financial disclosure, unnecessarily inflating costs.
- I was forced to spend around \$30,000 defending against unfounded allegations of child abuse concerning Joshua and addressing Delaney's suggestion that an accounts receivable could be considered a final property settlement. Despite financial pressures, I had no choice but to comply to the best of my ability.
- Delaney's recent request to attempt mediation again, even after already investing substantial time and money with a former judge, further contributes to these needless expenses.
- Furthermore, Delaney's handling of the non-disclosure of financials related to the condo significantly increased my costs, necessitating both a change of lawyers and the hiring of a forensic accountant.

Delaney's conduct appears to lack any genuine effort to resolve this matter efficiently and has only led to unnecessary delays and increased costs.

I request that we file an application to limit costs immediately and take steps to bring this matter before a judge to ensure a resolution. I am determined to bring this matter to a fair and efficient close.

Thank you for your prompt attention to this matter.

Regards,

Stephen Cooke

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

On Tue, Sep 10, 2024 at 5:21 PM Stephen Cooke <stephencooke.c@gmail.com> wrote:

Dear Matthew,

Before any further steps are taken, I would appreciate it if you could kindly send me a copy of the email you plan to send to Delaney Roberts, which should confirm/state the following:

- a) When my client agreed to the property settlement in principle, it was not disclosed or made known that the offer was subject to the acceptance of your client's narrative with respect to the marital relationship and parenting over the last 10 years.
- b) Before we commit to wasting any more time or money on what has been a fruitless exercise thus far, per your assertion that "both parties do not need to fully agree on the content of the joint letter," do you confirm that, should my client contest all assertions in the letter proposed by your client, we have your approval to send it to the registrar regardless?
- c) As we have passed yet another deadline imposed by your client (which is absurd given that the previous deadline was provided in the absence of full disclosure regarding the joint letter to the registrar, which aims to rewrite history and solidify matters that should remain wholly separate from the property matter), we request assurance of a reasonable deadline of a week while we work out the details, before attempting to advance this matter further.

Like the Court, I am very aware of the exceeding costs of this matter and quite a bit to say about the reasons for it. My client has made it known that he plans to self-represent at Court should the need arise.

Please ensure this is clearly communicated to Delaney Roberts in the email.

Kind regards,

Stephen Cooke

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

On Tue, Sep 10, 2024 at 10:40 AM Matthew Shepherd <mshepherd@ramsdenslaw.com.au> wrote:

Dear Stephen

See email below from the court re the Family Dispute Resolution Conference. It asks for the Case Outlines and minute of Order.

These were discussed in my email of yesterday which explained what need to be done. This depends on whether the property matter is resolved or not.

Have you had a chance to look at my email of yesterday yet?

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshpherd@ramsdenlaw.com.au



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BOOK A
MEDIATION WITH ME

From: Reece Ramsden <ramsden@ramsdenlaw.com.au>

Sent: Tuesday, September 10, 2024 10:30 AM

To: All Sydney <AllSydney@ramsdenlaw.com.au>

Subject: FW: Cooke S C & H A NCC3896/2023 | Part 1 and Part 2 Dispute Resolution Conference [SEC=OFFICIAL]

Regards,

REECE RAMSDEN

Partner (Director)

Accredited Specialist in Family Law

D: (02) 8123 1223

E: ramsdens@ramsdenslaw.com.au



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From: Associate Senior Judicial Registrar Kelly <Associate.sjrKelly@fcfcoa.gov.au>

Sent: Tuesday, September 10, 2024 10:24 AM

To: Reece Ramsden <ramsdens@ramsdenslaw.com.au>; hello@delaneyroberts.com.au; admin@jlmfamilylawyers.com.au

Cc: NCC38962023@federalcourts.gov.au

Subject: Cooke S C & H A NCC3896/2023 | Part 1 and Part 2 Dispute Resolution Conference [SEC=OFFICIAL]

You don't often get email from associate.sjrkelly@fcfcoa.gov.au. [Learn why this is important](#)

OFFICIAL

Good morning,

I refer to the above matter which is listed for a Family Dispute Resolution Conference.

The **Part 1** event will be conducted on **13 September 2024** by telephone. Judicial Registrar Kelly will initiate the call to:

- The Applicant at 10:00am AEST
- The Respondent at 10:45pm AEST

If the parties have not yet submitted their Case Outlines and any minute of Order sought, could the parties please provide this to Chambers at their earliest convenience.

The **Part 2** event will be conducted via Microsoft Teams and is listed for **18 September 2024** commencing at **9:00 am AEST**. Please join the link below on 18 September 2024. .

Microsoft Teams [Need help?](#)

Join the meeting now

Meeting ID: 465 699 783 066

Passcode: HRytxm

Dial in by phone

+61 2 9161 1229,,439485770# Australia, Sydney

[Find a local number](#)

Phone conference ID: 439 485 770#

Join on a video conferencing device

Tenant key: federalcourts@m.webex.com

Video ID: 137 491 556 3

[More info](#)

For organizers: [Meeting options](#) | [Reset dial-in PIN](#)

Thank you.

Kind Regards,

Carolyn

Associate / Legal Case Manager – Chambers of Senior Judicial Registrar Kelly

Federal Circuit and Family Court of Australia

p. 1300 352 000 | **e.** Associate.sjrKelly@fcfcoa.gov.au | **w.** www.fcfcoa.gov.au

Matthew Shepherd <mshepherd@ramsdenslaw.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>

Wed, Sep 11, 2024 at 2:16 AM

Dear Stephen

The way to minimise costs is to:

1. Settle the property asap – and on the basis of the consent orders signed by you presuming they are still acceptable to you.
2. The quickest way to do that is to send the Orders to the court with the **attached** letter settled by me. You will see it clearly states:
 - a. Assertions made by Heather to be just assertions and not agreed to be by you.
 - b. That you agree to the Orders to avoid costs and delay – and not because you accept they fair.
 - c. Of course, my letter does not dispute non-controversial things such as dates of the marriage and the move to Australia.
3. We send it to the other side this morning on the basis that the Orders go to the Registrar with my letter or not at all. We do not need (and it would use up unnecessary time and costs) to seek their prior consent re you disputing her allegations.
4. This way we can let the Registrar know today the property is settled and the Dispute Resolution Conference (Stage 1 45 phone call with Registrar at 10am this Friday; and Stage 2 on Wednesday next week by Teams) can focus on the bots and gives an opportunity to settle final parenting Orders and finish court. If this does not occur, we already have a court date on 15 October 2024 to seek the matter be listed for a final hearing before a Judge.
5. Filing a further application will not result in the court dealing with the matter any more quickly, and will just incur unnecessary fees in the preparation.

Another option is we ask the Registrar during the Dispute Resolution Conference on Wednesday next week to make the Orders on the basis of different oral submissions made by each side. One or both of you might choose to withdraw your consent to the Orders. It may distract one or both of you from focusing on the boy's needs. It would mean I would need to prepare a Case Summary for the Conference on both property and parenting creating additional costs for you. We are already late with the Case Summary so I need to do it today. It is a confidential document just

for the Conference. It does not bind you to any offers. I suggest it say that:

- a. in the absence of an agreement, you would seek the boys live with you primarily (as per your December 2023 Application)
- b. but that you are prepared to consider the boys being with you 6 days during each school term fortnight and half school holidays. I could attach the Orders to that effect I have already prepared.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

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BOOK A
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Regards,

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4.9.24 Letter to ct drafted by RFL.docx

33K

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Wed, Sep 11, 2024 at 9:25 AM

You have my go ahead on this approach with what little time remains.

Best regards,

Stephen

[Quoted text hidden]

19 attachments



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